

7 December 2022
Juror off sick

CONTENTS

Housekeeping

Wednesday, 7 December 2022
(10.30 am)

(Delay in proceedings)

(10.35 am)

(In the absence of the jury)

Housekeeping

MR JUSTICE GOSS: Mr Johnson, I believe you've been informed that one of the jurors is unwell and not able to attend court. That juror has tested positive for COVID, but their absence is a consequence of not feeling well because, of course, there is no restriction on someone -- like I have a cold at the moment and I think you may have a cold at the moment, there are a lot of ordinary old-fashioned colds around.

So there's nothing we can do today. I'm just contemplating how we're going to deal with this in the future. The remaining jurors who are here are all feeling well at the moment. They are being offered COVID test kits if they want them for the future. But as far as today is concerned, we cannot sit.

I was considering, and this is what I wanted to raise with you, the possibility of having the absent juror phoning in at 4 o'clock saying how they feel and whether they think, so far as you can predict how you're going to feel on the next day, whether they feel they'll be well enough to come in tomorrow.

MR JOHNSON: Yes. In terms of timetable, and there may be an element of me repeating what I said to your Lordship yesterday, we were, as we saw things panning out between now and the 16th, likely, we thought, to come up short in the sense that we thought we would finish [Baby G]'s cases on Tuesday or Wednesday next week. And then there was an issue of whether or not we started the very beginning of [Baby H].

MR JUSTICE GOSS: I think that's going by now, that's out.

MR JOHNSON: It is. The only reason I mention it is in that sense, unless your Lordship is going to be of the view that we should do 2 days of [Baby H], then have 3 weeks off, actually

it's probably not going to make a great deal of difference to the overall progress of the trial, having a bit of a hiatus now.

One of the things my learned friend and I have been discussing is whether or not we can deal with the issue that's arisen about the Royal College report --

MR JUSTICE GOSS: Yes.

MR JOHNSON: -- which we think we probably can, albeit not today, because as I understand the position, my learned friend wants to put in a reply.

MR JUSTICE GOSS: That's what I would expect. I wouldn't expect to deal with it today. It will give Mr Myers an opportunity to formulate a written response. Well, yes, I agree that we have this period of slack, but of course no one knows whether this is going to be a tumble effect --

MR JOHNSON: A domino, yes.

MR JUSTICE GOSS: -- or domino effect.

MR JOHNSON: The other thing, it's useful for us to know your Lordship's view about proceeding with [Baby H] because there's at least one witness who's not in Great Britain at the moment, whose attendance is going to have to be arranged if we are going to go on to that. So knowing as soon as possible whether that witness needs to be brought from overseas back here would help.

MR JUSTICE GOSS: Well, realistically, we're losing today in any event, we may lose tomorrow, and that's the 2 days gone.

MR JOHNSON: Yes. We could, if required to do so, and I have no objection to doing this, deal with the sequence of events.

MR JUSTICE GOSS: Exactly.

MR JOHNSON: Do it in the normal way and literally just do the highlights in half an hour when we come back, something like that.

MR JUSTICE GOSS: I will make that decision now, that we will not proceed to any oral evidence apart from the sequence of events in relation to any further child --

MR JOHNSON: Thank you.

MR JUSTICE GOSS: -- before Christmas.

Coming back to what I suggested about phoning the absent juror and then communicating with everyone at 4 o'clock, is that being unduly optimistic? Do you think it's realistic?

MR JOHNSON: We at the moment don't know which juror it is and therefore can't bring our prejudices to bear on the likelihood of whether or not that particular person is likely to be here.

MR JUSTICE GOSS: All I can say is I think it's a juror who's been here dutifully, as you will see when they come in from the vacant seat.

(Pause)

The clerk is raising the point about even if she feels well enough coming in tomorrow, to give it to everyone else. But as I pointed out, she was probably at her most infectious yesterday because one of the features of the coronavirus, in generic terms, is that one is at one's most infectious before you're symptomatic. So it's a rock and a hard place.

MR JOHNSON: Yes.

MR JUSTICE GOSS: Otherwise, each time someone says, "I feel unwell and I've tested positive for COVID", we're going to be losing huge tranches.

MR JOHNSON: Yes. For the next 3 months, probably, unless everybody gets it over Christmas, which is a possibility.

MR JUSTICE GOSS: It does seem to be surging at the moment.

Well, unless Mr Myers, you want to say something about this?

MR MYERS: No. We would simply echo the concern that Mr Johnson raised, although we recognise the competing concern that if we start taking large periods of time off every time somebody has a positive test, that could expand dramatically.

It's right, of course, that the virus is at an infectious stage before the test has been done and therefore there's a risk of it spreading. I suppose for anyone who has, for whatever reason, not contracted it at this point, it only increases the risks if they stay in close proximity to somebody who's got it, which is the balancing factor against pressing on. It's a very difficult situation and it's an unavoidable plague upon trials at the moment, particularly long trials.

MR JUSTICE GOSS: I'll tell you what, Mr Myers -- and forgive me interrupting, but I think I understand what you're saying. What about a compromise situation, saying that not today but

tomorrow, contact with the juror, and we see where we are potentially for Friday?

MR MYERS: Yes. We understand the invidious position your Lordship is in in dealing with this and the balance of natural caution against not excessive caution in the circumstances. And whatever can be done to militate that problem, we would urge that on the court. It may be that a slightly longer break may be prudent if the juror has just tested positive.

We don't know the state of the other jurors or indeed others in court at the moment in close proximity to the jurors. Anything that can reduce the risk of infection at this point would be helpful. We will probably discover within 24 or 48 hours if other jurors have contracted it or not from this juror, so at least it would give us an extra buffer against anybody else contracting it if we are fortunate that nobody else has done up to this into. But it'd be helpful if the other jurors were to test and to confirm the position if they would do so.

MR JUSTICE GOSS: Yes. Well, it is very difficult, because, as I say, the actual guidance is that unless you feel too unwell to work, you should go to work.

MR MYERS: Yes.

MR JUSTICE GOSS: These jurors are going to come into contact into people, they could catch it from anyone.

MR MYERS: We understand that. The difficulty of the jurors, compared to most situations, is if one person at work is unwell, others who haven't yet contracted it can continue. The difficulty we have with the jury is that, of course, if one of them is unwell then everything then stops but that then magnifies dramatically what happens further down the line if more people in the jury keep catching it as opposed to someone at work, just one person being away.

MR JUSTICE GOSS: What I'm going to do is say not today phoning because I think it's unduly optimistic, but I will do for tomorrow. So at the moment we'll keep potentially Friday as a potential sitting day.

MR MYERS: Very well, my Lord.

MR JUSTICE GOSS: We'll say no more than that. Anything else anyone wants to say?

MR MYERS: No, my Lord.

MR JUSTICE GOSS: We'll come back to other matters when I've dealt with the jury.

(In the presence of the jury)

MR JUSTICE GOSS: Good morning, members of the jury. Not that it is a good morning in the sense that we're not in a position to proceed, as you realise. As you know, one of your number has unfortunately fallen ill and has tested positive for COVID.

As you will know, the current situation in relation to COVID is that even if you do test positive for COVID that does not stop you attending for work if you feel well enough to work. But we have a rather different situation here. This juror has said she is not well enough and that obviously means we don't -- she's quite rightly not come in and we're not able to sit today.

But I'm looking to the future here now and I have been discussing with counsel, and that's why you have been delayed, how this should be managed from today onwards.

As you will know, COVID is a form of coronavirus and the common cold, which I have at the moment, is a coronavirus and we pass the infection on to others in daily life and we are at our most infectious, we are told, actually before we become symptomatic. Then when we are in the very initial stages that's when it's most potent and it diminishes as time goes by.

I've considered the possibility of contemplating trying to sit tomorrow if the juror felt well enough.

The difficulty is she will be infectious and she might infect one of you who may then not feel well enough to serve on the jury, and as you know, without one of you we can't proceed. So I'm going to say that obviously we are not proceeding today and we are not going to proceed tomorrow. But what I'm going to ask you to do is to phone in tomorrow afternoon to see whether we're able to sit on Friday.

Sorry this messes you around and creates uncertainty, but we don't want to be losing days and days and days because that's just lengthening the trial further and further into next year and it's obviously going well into next year as it is. We're in the winter season of illnesses, all sorts of illnesses, and we want to make as much progress as we can.

So I'm not a soothsayer, I don't know what's going to happen in the future in relation to any one of you, but that's how it's going to be left. So don't come in tomorrow, but the jury officer will either contact you or you contact the jury officer, whatever arrangement is made between you, tomorrow afternoon to

see how your absent colleague is and whether she is well enough to come in and all of you feel well enough to come in. All right?

I'm sorry about this. But can I just say that as far as the -- as you know, next week is our last week before Christmas because we are not sitting the week leading up to Christmas, the day itself. We are going to complete, I hope, the evidence relating to [Baby G] next week. So that will then be the end point so far as children are concerned before Christmas and we'll move on to the next child after Christmas. If we've got some spare time next week we'll do other things, generic matters, rather than specific to an individual child.

So there won't be any -- it may be just a sequence of events in relation to the next child but not any other direct evidence relating to another child. So that is the timetable. Whether we can keep to that or not, we'll wait and see as events develop.

This gap will give us the opportunity for me to discuss with counsel what other paper documents you should be provided with. You've got some sheets in relation to [Baby G] and I'm going to check with counsel now that they are still working on which sheets you should have for the earlier children, the main charts with the main readings on them, so that you don't have to refer to the screens. But you can if you need to refer to the screens, you can always refer to the -- the iPads, rather, sorry, in due course.

But I'm certainly finding it helpful to have a document sometimes to compare documents one alongside another rather than just looking at them on screen and moving to another screenshot of another document.

I gathered from your reactions earlier, and indeed just now, that at least some of you find that quite helpful, so we'll work on that and hope to have that in place by next week. All right?

I'll just check with counsel there's nothing else as far as the jury is concerned? So I remind you, yet again, of your responsibilities as a jury: you can obviously say to members of your family and friends who know you're serving as jurors in this case, when they say, "Why aren't you working today, why haven't you been sitting?", you can say, "One of our number was ill", but don't say anything about the case itself. Do not discuss anything to do with this case with anyone at all because you're not going to be together again until you're all back 12 together again before we sit again in this case. So no communication by any means and obviously no research about anything to do with this case.

Thank you very much.

I should say, if you want test kits, you can be provided with test kits for COVID, so you wouldn't have to pay for them.

(In the absence of the jury)

MR JUSTICE GOSS: That flagged up one of the issues, Mr Johnson, the other documents. So that can be discussed.

MR JOHNSON: There's no problem about that at all. We had actually sorted out the first two a while ago and then both had been diverted by other things.

MR JUSTICE GOSS: Exactly.

MR JOHNSON: This is just the sort of break that enables us to catch up with that sort of administrative point and that will be sorted out.

MR JUSTICE GOSS: Exactly, by the end of the week. It would be helpful to have it all ready by next week.

MR JOHNSON: Yes. And we actually have the next part of the [Baby G] case agreed, everything printed, and it's ready to go.

MR JUSTICE GOSS: That's the highest priority.

Mr Driver, thank you for the list of statements that were read. I've corrected one. I checked it against the transcripts. I looked at my notebook and realised --

MR DRIVER: As I did. An inexplicable anomaly.

MR JUSTICE GOSS: There were some statements provided to me that were going to be read but I don't believe they have been read yet --

MR DRIVER: I agree.

MR JUSTICE GOSS: -- but I've still got them.

MR DRIVER: I agree. As your Lordship will understand, we created a package and as the evidence was presented we realised some were otiose (inaudible: no microphone).

MR JUSTICE GOSS: That's right. Good. It would probably be helpful -- I know that the defence will have their own notes, but it might be helpful to provide that list to the --

MR DRIVER: I did.

MR JUSTICE GOSS: You did? Exactly, so that we all know.

Good.

MR DRIVER: Amongst the documents to be added, Mr Johnson reminded me this morning that I did undertake to provide a schedule of the orders of Babiven Maintenance bags around the time of the [Baby F] issue and, together with my learned friends, we've created such a document.

So that's here to be added in the appropriate place at the appropriate time.

MR JUSTICE GOSS: Yes. There is still, I haven't got it in front of me, the outstanding jury question.

MR JOHNSON: About the blood transfusion, yes.

MR JUSTICE GOSS: Which is going to come up presumably or will be addressed at some stage in the future.

MR JOHNSON: We need to get a statement to deal with it, so we're going through that process.

MR JUSTICE GOSS: Good. Right. Well, I'll leave these matters to you, but we could -- if Mr Myers is ready tomorrow, we could deal with the report aspect.

MR MYERS: Yes. We can deal with that, I can deal with the response today, and then we can deal with that tomorrow.

MR JUSTICE GOSS: Do you require Ms Letby to remain here?

MR MYERS: I do briefly today.

May I ask, if the jury aren't here until Friday, whether Ms Letby could next attend on Friday?

Obviously, there's little else to do today. There will be a legal argument tomorrow. She doesn't say that to be in any way difficult with the court at all, just simply, where she can, to cut down on the travelling that she's doing, which is easier for her. It's not a lack of interest or any attempt to be difficult in any way with the court.

MR JUSTICE GOSS: No.

MR MYERS: We and she understand the concern that she is present when the jury are present and we share that concern and, respectfully, wholeheartedly endorse it.

But it may be, if it's a matter of law to be dealt with with your Lordship tomorrow, while she is most plainly engaged by it and naturally concerned as to the outcome of any argument on her behalf, if she --

MR JUSTICE GOSS: She waives her right to be present.

MR MYERS: If she chooses not to be here in the situation, it's not done with any degree of disregard for the court, it's just to try to deal with the situation she's in as best she can, as she sees it.

MR JUSTICE GOSS: Mr Johnson, do you have any observations?

It's legal argument in the absence of the jury and I think different considerations apply.

MR JOHNSON: They do.

MR JUSTICE GOSS: And if she chooses to waive her right for the reasons that she has, then I'm not going to stand in the way and insist she is brought to court.

MR MYERS: We are grateful for that and we will, of course, discuss these matters with her, but we're grateful for that accommodation if that's the decision she takes.

MR JUSTICE GOSS: Exactly. It's a matter for her. But obviously that should be communicated to those responsible for transporting her.

MR MYERS: We will deal with that, my Lord.

MR JUSTICE GOSS: So she should remain here because you'll want to discuss this with her?

MR MYERS: I do.

MR JUSTICE GOSS: But I am sure that she just understands that tomorrow is legal argument and nothing in relation to the trial in front of the jury.

MR MYERS: No, my Lord, but that's what we'll discuss, thank you.

MR JUSTICE GOSS: Thank you very much.

So do you understand, officer? Could you not take her away until Mr Myers has come down and spoken to Ms Letby? Are you the senior officer? You're the senior officer. He will confirm with

you about whether she is required tomorrow or not at court.
Thank you very much.

Mr Murphy, is there an iPad that I can have or do I have to be
in court to use the iPad?

MR MURPHY: I think later on today, my Lord, you'll be able to
take one.

MR JUSTICE GOSS: Thank you very much. I shall be here all day.
Thank you very much.

(10.59 am)

(The court adjourned until a time and date to be determined)